

22VECV01536 22VECV01536

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 22VECV01536 Hearing Date: September 18, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Alen

Cohen, et al.,

Plaintiffs.

v.

Moshe

Zemach, et al.,

Defendants.

Case Number Department

22VECV01536 107

COURT'S [TENTATIVE]

ORDER RE: ז

PLAINTIFFS' MOTIONS IN LIMINE

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

PLAINTIFFS MOTION

IN LIMINE NO. 1 FOR AN ORDER EXCLUDING ANY EVIDENCE, ARGUMENT OR COMMENT REGARDING INSURANCE COVERAGE MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF MARK J. GEYLIKMAN IN SUPPORT OF MOTION filed 4/28/2025

GRANT. The insurance evidence has limited probative value and presents a substantial risk of confusion and improper reduction of damages and it is therefore excluded under the collateral-source rule and Evidence Code section 352. As far as alleged subrogation, Defendant EDW conflates a possible subrogation or reimbursement interest held by an insurer with Plaintiff's standing to pursue Plaintiff's own damages. The payments between the insurance companies = does not establish that Plaintiff assigned or released the claim, that the payment represented the full amount of the loss, or that Plaintiff is barred from seeking additional damages. The jury will determine the total loss caused by Defendants. As will be discussed in the other MIL's, any credit or reimbursement issue may be addressed by the Court after the verdict.

PLAINTIFFS NOTICE

OF MOTION AND MOTION IN LIMINE NO. 2 TO EXCLUDE PAUL RUSSELLS TESTIMONY AT TRIAL MEMORANDUM OF POINTS AND AUTHORITIES; SUPPORTING DECLARATION OF STEPHEN E. FOSTER filed 3/17/2026

GRANT. First, the court finds that Plaintiffs made a complete and timely exchange under section 2034.260 and have objected to the challenged testimony. Plaintiffs therefore may seek exclusion under section 2034.300. Second, the defense declarations assign both experts the same subjects. Defendant EDW had already retained Peter Nils Van Dijk on those subjects before supplementally designating Paul Russell. Paul Russell's designation therefore did not satisfy section 2034.280, and Defendant obtained no order authorizing augmentation. The withdrawal of Peter Nils Van Dijk's does not validate the designation. Third, Defendant EDW knew Plaintiffs sought exclusion no later than its receipt of the March 2026 motion, which Defendant acknowledged by email. Approximately six months passed without a motion to augment. Defendant EDW could have sought augmentation in the alternative while maintaining that its original supplementation was valid. Thus, Defendant EDW's

failure to comply was unreasonable. There is no explanation for failing to seek augmentation after receiving the exclusion motion. Defendant EDW has known for six months that Plaintiffs were actively seeking exclusion, even if Defendant EDW considered their position legally incorrect.

The Court has considered the early disclosure of Paul Russell, Plaintiffs' requests for deposition dates, the contemplated opportunity to depose him, and the substantial effect of excluding Defendant EDW's sole remaining expert. The September 25, 2025 correspondence does not establish any agreement. The overlap was identified early and the designation was challenged, and given those facts the Defendant' EDWs prolonged failure to seek the statutory relief available to it was not reasonable.

As far as the alternative request that the court "treat this opposition as a motion to augment/replace its expert witness", the request is denied. There is no noticed augmentation motion before the Court. The Court cannot grant augmentation merely by relabeling the opposition as a motion, because, as the plaintiff points out, the opposition does not provide the procedural and evidentiary showing required. Lastly, the expert-discovery deadline has expired. The Court declines to convert the opposition into an augmentation motion and denies the request to defer resolution so Defendant EDW may pursue relief it could have sought during the preceding six months. Plaintiffs' motion in limine is GRANTED. Pursuant to section 2034.300, Defendant is precluded from offering Paul Russell's expert opinion testimony on the subjects identified above.

PLAINTIFFS NOTICE
OF MOTION AND MOTION IN LIMINE NO. 3 TO EXCLUDE DOMINICK CAPELOUTO AND TOM BLATCHLEYS TESTIMONY AT TRIAL MEMORANDUM OF POINTS AND AUTHORITIES;
SUPPORTING DECLARATION OF STEPHEN E. FOSTER filed 3/17/2026

GRANT. The operative date here is the initial trial date. The demand, exchange, and expert-discovery deadlines are calculated from that date. The code does not require a new demand every time trial is continued. Therefore, Defendants' contention that the trial continuance eliminated their obligation to comply with the expert-disclosure statutes is not persuasive. So while the continuance order reset applicable deadlines, it did not vacate the prior expert-exchange demand or authorize Defendants to identify experts informally on the eve of trial. Therefore, the Defendants needed

to have properly designated the proposed experts, provided the required declarations and writings, and made them available for deposition, or seek leave to submit tardy information or augment their designation. They failed to do so. Moreover, Plaintiffs' motion in limine #3 was filed more than six months ago, giving Defendants ample opportunity to seek appropriate relief, move to augment their designation, or otherwise cure the alleged defect. Their failure to take any action during that time further demonstrates that their nondisclosure was unreasonable. Given Plaintiffs' timely compliance and the resulting prejudice, exclusion is required under Code of Civil Procedure section 2034.300.

PLAINTIFFS'

MOTION IN LIMINE NO. 4 FOR AN ORDER EXCLUDING ANY EVIDENCE, ARGUMENT OR COMMENT AS TO THE LAFD STATISTICAL REPORT MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF MARK J. GEYLIKMAN IN SUPPORT OF MOTION filed 8/24/2026

Grant. The Court sustains Plaintiffs'

objections to the fire-department report on hearsay and foundation grounds. The report is an out-of-court statement offered to prove the truth of the matters stated, and Defendants have not established an applicable hearsay exception or adequate foundation. In some circumstances, similar to police reports, the official-records exception may permit admission of parts of a report documenting observations made by a percipient public employee. That exception, however, does not automatically make admissible unsupported opinions, estimates, or valuations. The report's information concerning the amount of loss lacks a foundation based on personal knowledge and would most certainly rely on additional hearsay from insurers, contractors, or other third parties. A firefighter with personal knowledge may testify to what the firefighter personally observed, provided the witness was properly disclosed and noticed. The report itself, and the estimates or valuations contained in it, are inadmissible.

PLAINTIFFS MOTION

IN LIMINE NO. 5 FOR AN ORDER: (A) EXCLUDING ANY EVIDENCE, ARGUMENT OR COMMENT AS TO A JULY 15, 2026, LAFD LETTER SURREPTITIOUSLY SOLICITED BY WPES COUNSEL AND ITS PRIVATE INVESTIGATOR; AND (B) EXCLUDING ANY EVIDENCE, ARGUMENT, etc. Filed 9/3/2026

The motion is granted

in part and denied in part. The letter itself is hearsay, and Defendants have not established any applicable hearsay exception; it is therefore excluded. To the extent Defendants seek to present testimony from an arson investigator concerning independently observed or otherwise admissible facts relating to the fire, the Court will determine the admissibility of that testimony at a hearing outside the presence of the jury, pursuant to Evidence Code section 402. Plaintiffs' motion for sanctions is denied.

Dated: September 18, 2026 Hon.

Eric Harmon

Judge

of the Superior Court